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JOURNAL of the PROCEEDINGS of the CITY COUNCIL of the CITY of CHICAGO, ILLINOIS

Regular Meeting -- Wednesday, April 26, 2006

at 10:00 A.M.

(Council Chambers -- City Hall -- Chicago, Illinois)

OFFICIAL RECORD.

VOLUME I

RICHARD M. DALEY
Mayor

Be It Further Resolved, That the City Council of Chicago will hold public hearings on high utility prices and invite representatives from the various utilities to participate.

This resolution shall take effect upon passage this twenty-sixth day of April, 2006.

COMMITTEE ON HEALTH.

AMENDMENT OF TITLE 7, CHAPTER 39 OF MUNICIPAL CODE OF CHICAGO BY ADDITION OF NEW SECTIONS 001 AND 005 PROHIBITING SALE OF FOIE GRAS BY FOOD ESTABLISHMENTS.

The Committee on Health submitted the following report:

CHICAGO, October 25, 2005.

To the President and Members of the City Council:

The Committee on Health met on Tuesday, October 25, 2005, at 10:00 A.M. in City Council chambers to hear an ordinance introduced by Alderman Joe Moore of the 49th Ward calling for a ban on the sale of foie gras in the City of Chicago.

The measure was passed with no dissenting votes.

Sincerely,

(Signed) ED H. SMITH,
Chairman.

On motion of Alderman E. Smith, the said proposed ordinance transmitted with the foregoing committee report was *Passed* by yeas and nays as follows:

Yeas -- Aldermen Flores, Haithcock, Tillman, Preckwinkle, Hairston, Lyle, Beavers, Stroger, Beale, Pope, Balcer, Cárdenas, Olivo, Burke, T. Thomas, Coleman, L. Thomas, Murphy, Rugai, Troutman, Brookins, Muñoz, Zalewski, Chandler, Solis, Ocasio, Burnett, E. Smith, Carothers, Reboyras, Suarez, Matlak, Mell, Austin, Colón, Banks, Mitts, Allen, Laurino, O'Connor, Doherty, Natarus, Tunney, Shiller, Schulter, M. Smith, Moore, Stone -- 48.

Nays -- Alderman Levar -- 1.

Alderman Natarus moved to reconsider the foregoing vote. The motion was lost.

The following is said ordinance as passed:

WHEREAS, The City of Chicago is a home rule unit of government pursuant to the 1970 Illinois Constitution, Article VII, Section 6(a); and

WHEREAS, Pursuant to its home rule power, the City of Chicago may exercise any power and perform any function relating to its government and affairs including protecting the health, safety and welfare of its citizens; and

WHEREAS, The City of Chicago is home to many famous restaurants offering the finest cuisine and dining experiences to their customers; and

WHEREAS, Millions of people visit Chicago every year, attending cultural events and dining in our legendary restaurants; and

WHEREAS, Recently the media has shed light on the unethical practices of the care and preparation of the livers of birds; and

WHEREAS, Birds, in particular geese and ducks, are inhumanely force fed, via a pipe inserted through their throats several times a day, in order to produce a rare delicacy, foie gras, for restaurant patrons; and

WHEREAS, Arguably our City's most renowned chef, Charlie Trotter, has stopped serving the delicacy, foie gras, in his restaurants; and

WHEREAS, Similar legislation requiring the ethical treatment of birds is being introduced throughout the United States; and

WHEREAS, The State of California passed legislation prohibiting the act of force feeding birds as well as banning the sale of the product made from this inhumane treatment; and

WHEREAS, The State of Illinois is currently considering a similar ban of the practice of force feeding and the resulting product; and

WHEREAS, According to a recent Zogby poll, nearly eighty percent (80%) of Americans, when educated about foie gras, support a ban on the force feeding of birds; and

WHEREAS, The people of the City of Chicago and those who visit here have come to expect, and rightfully deserve, the highest quality in resources, service and fare; and

WHEREAS, By ensuring the ethical treatment of animals, who are the source of the food offered in our restaurants, the City of Chicago is able to continue to offer the best in dining experiences; now, therefore,

Be It Ordained by the City Council of the City of Chicago:

SECTION 1. The above recitals are expressly incorporated herein and made a part hereof as though fully set forth herein.

SECTION 2. Chapter 7-39 of the Municipal Code of the City of Chicago is hereby amended by creating new sections underscored as follows:

7-39-001 Food Establishments -- Banned Items.

All food dispensing establishments, as defined in Section 4-8-010 of the Municipal Code, shall prohibit the sale of foie gras.

7-39-005 Violation -- Penalty.

Any business that violates any provision of this chapter shall be fined not less than $250 and no more than $500 for each offense, and a separate and distinct offense shall be deemed to have been committed for each and every day on which any business shall be guilty of such violation.

SECTION 3. This ordinance shall be in full force and effect ninety (90) days after its passage and publication.